## GENERAL TERMS AND CONDITIONS OF PURCHASE

**1. Form of Purchase Orders**
Purchase orders shall be binding upon the Company only if issued in writing by duly authorised personnel. Orders transmitted by email or other electronic means shall also be deemed valid, provided they originate from duly authorised representatives of the Company.

**2. Acceptance of Purchase Orders**
The Supplier shall confirm its acceptance of the purchase order in writing within 10 working days of receipt. If no written confirmation is received within this period, the purchase order shall automatically lapse, unless otherwise agreed in writing with the Company.

**3. Order Confirmation and Amendments**
The Supplier's order confirmation must fully correspond to the terms and conditions specified in the purchase order.
Any amendments concerning prices, quantities, technical specifications, delivery dates or other contractual conditions must be approved in writing by the Company in advance.
In the absence of such approval, any amendments proposed by the Supplier shall not be binding upon the Company.

**4. Delivery Dates**
The delivery dates specified in the purchase order shall be considered essential terms of the contract pursuant to Article 1457 of the Italian Civil Code, unless otherwise agreed in writing.
The Supplier shall promptly notify the Company of any circumstances that may affect compliance with the agreed delivery dates.
In the event of delayed delivery, the Company shall be entitled to exercise the remedies available under applicable law, including termination of the contract where permitted, without prejudice to its right to claim compensation for any damages suffered.

**5. Place of Delivery**
Unless otherwise specified in the purchase order, all goods shall be delivered to the Company's registered office.

**6. Delivery and Transport Conditions**
Unless otherwise agreed in writing, all deliveries shall be made carriage paid to the agreed destination, with transport costs borne by the Supplier.
The Supplier shall be responsible for properly arranging transportation and ensuring adequate protection of the goods.
The risk of loss or damage the goods shall remain with the Supplier until delivery to the agreed destination, unless otherwise expressly agreed in writing.

**7. Packaging**
All packaging costs shall be borne by the Supplier, unless otherwise agreed in writing.
Packaging shall be appropriate to the nature of the goods and suitable to ensure their integrity during handling, transportation and delivery, in compliance with applicable regulations.

**8. Prices and Payment Terms**
The applicable prices shall be those expressly stated in the purchase order and shall remain fixed, unless otherwise agreed in writing.
Any price adjustments must be authorised in advance by the Company through a written amendment to the purchase order.
Payments shall be made in accordance with the agreed terms and conditions and in compliance with applicable legislation governing commercial transactions.

**9. Delivery Documentation**
Each delivery shall be accompanied by a duly completed delivery note indicating the relevant purchase order number and all information necessary to identify the goods.
Where required by applicable legislation or specified in the purchase order, the Supplier shall also provide certificates of conformity, technical documentation, instructions and any other required documents.
The Company shall be entitled to request the completion or correction of any missing or incomplete documentation.

**10. Transfer of Ownership**
Unless otherwise agreed in writing, ownership of the goods shall pass to the Company upon delivery to the agreed destination, subject to any mandatory provisions of applicable law.
The transfer of ownership shall not constitute final acceptance of the goods or affect the Company's rights in the event of defects or non-conformities.

**11. Receipt and Acceptance of Goods**
Receipt of the goods, signing of delivery documents and any payment made shall not, in themselves, constitute final acceptance of the conformity of the goods.
The Company reserves the right to carry out the necessary inspections and to report any defects or non-conformities, in accordance with the applicable statutory and contractual requirements and time limits.

**12. Inspection of Goods**
The Company reserves the right to inspect the goods to verify their conformity with the purchase order, the agreed technical specifications and the contractual documentation.
Inspections shall be carried out in accordance with the Company's internal procedures and within a timeframe appropriate to the nature of the goods, without prejudice to any mandatory statutory time limits.
A positive outcome of the initial inspections shall not prevent the Company from subsequently reporting latent defects or non-conformities that could not reasonably have been detected during ordinary inspections.

**13. Warranty and Product Conformity**
The Supplier warrants that all goods and services supplied shall comply with the agreed technical and quality specifications, be suitable for their contractually intended purpose and meet all applicable legal and regulatory requirements.
Where relevant to the goods or services supplied, the Supplier further warrants compliance with applicable health, safety and environmental regulations and undertakes to provide all required conformity documentation.
Unless a longer warranty period has been expressly agreed or is provided for by applicable law, the contractual warranty shall remain valid for 12 months from the date of delivery.
During the warranty period, the Supplier undertakes to take prompt action to remedy any defects or non-conformities for which it is responsible, in accordance with the arrangements agreed with the Company.
Statutory requirements and time limits concerning notification of defects, limitation periods and other legal rights shall remain applicable, except where validly modified by contractual agreement.

**14. Defects, Non-Conformities and Remedies**
Should the goods or services supplied present defects, faults or deviations from the agreed specifications, the Company shall be entitled to notify the Supplier and request, depending on the nature of the contract and to the extent permitted by applicable law, repair, replacement, a price reduction or termination of the contract.
The Supplier shall cooperate promptly in resolving any non-conformities and shall bear the costs of remedial measures for which it is responsible.In urgent circumstances, or where the Supplier fails to take appropriate action within a reasonable period, the Company may, where practicable after notifying the Supplier, carry out the necessary remedial work itself or through third parties.
In such cases, the Company reserves the right to recover reasonable and documented costs from the Supplier, to the extent permitted by applicable law.
The Company further reserves the right to suspend payment of amounts relating to the disputed supply, within the limits permitted by applicable law, without prejudice to its right to claim compensation for any damages suffered.

**15. Applicability of the General Terms and Conditions of Purchase**
These General Terms and Conditions of Purchase shall form an integral part of all purchase orders issued by the Company, provided they have been made available to the Supplier before conclusion of the contract.
Any general terms and conditions of sale proposed by the Supplier that differ from or supplement these conditions shall not apply unless expressly accepted in writing by the Company.
In the event of any inconsistency between these General Terms and Conditions of Purchase and the specific terms expressly agreed in the purchase order, the latter shall prevail.

**16. Governing Law and Jurisdiction**
These General Terms and Conditions of Purchase and all contractual relationships governed by them shall be subject to Italian law, with the express exclusion, to the extent permitted by law, of the United Nations Convention on Contracts for the International Sale of Goods (Vienna Convention of 1980 – CISG).
Any dispute arising out of or in connection with the interpretation, performance, breach or termination of supply contracts shall be subject to the jurisdiction of the Italian courts.
The Court of Monza, Italy, shall have exclusive jurisdiction, without prejudice to any mandatory provisions of applicable law or international conventions.

**17. Contractual Language**
These General Terms and Conditions of Purchase are available in Italian and English.
In the event of any discrepancy, inconsistency or difference in interpretation between the two versions, the Italian version shall prevail.

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**ACCEPTANCE OF GENERAL TERMS AND CONDITIONS OF PURCHASE**

The Supplier declares that it has read, understood and accepts these General Terms and Conditions of Purchase in their entirety.

**Place and Date:** _____

**Supplier's Company Name:** _____

**Name and Position of Authorised Representative:** _____

**Signature:** _____

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**SPECIFIC APPROVAL OF CONTRACTUAL CLAUSES**

Pursuant to and for the purposes of Articles 1341 and 1342 of the Italian Civil Code, the Supplier declares that it has read, understood and expressly and specifically approves, to the extent applicable, the following clauses:

**14. Defects, Non-Conformities and Remedies** – The Company's right to suspend payments relating to disputed supplies, subject to applicable law.

**16. Governing Law and Jurisdiction** – Exclusive jurisdiction of the Court of Monza, Italy.

**Place and Date:** _____

**Supplier's Company Name:** _____

**Name and Position of Authorised Representative:** _____

**Signature for Specific Approval:** _____